

25NNCV09031 25NNCV09031

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-20

Motion: DEFENDANTS TAO LIU AND LI YANG'S DEMURRER AND MOTION TO STRIKE

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Case Number: 25NNCV09031 Hearing Date: August 20, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

HONGYANG ZHANG,

Plaintiff(s),

vs.

TAO LIU,
et al.,

Defendant(s).

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CASE NO.: 25NNCV09031

[TENTATIVE]

ORDER RE: DEFENDANTS TAO LIU AND LI YANG'S DEMURRER AND MOTION TO
STRIKE

Dept.

3

8:30

a.m.

August

20, 2026

I. INTRODUCTION

On December

17, 2025, plaintiff Hongyang Zhang ("Plaintiff") filed this action against
defendants Tao Liu and Li Yang (collectively, "Defendants") asserting causes of
action for breach of contract and fraud.

On

March 20, 2026, Defendants filed a demurrer and a motion to strike.

The

demurrer and motion to strike are unopposed.

II. LEGAL STANDARDS

A.

Demurrer

A demurrer may be brought if

insufficient facts are stated to support the cause of action asserted. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill*

Lynch, Pierce, Fenner & Smith, Inc. (1998) 68 Cal.App.4th 445, 459.)

“We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]” (*Mitchell*

v. California Department of Public Health (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [“the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

B.

Motion to Strike

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd.

(b)(1).) The court may, upon a motion, or at any time in its discretion, and

upon terms it deems proper, strike any irrelevant, false, or improper matter

inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The

court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code

Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither

pertinent to nor supported by an otherwise sufficient claim or defense; or a

demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice.

(Code Civ. Proc., § 437.)

III. DISCUSSION

A.

Demurrer

1.

First

Cause of Action for Breach of Contract

First, the Court considers whether Plaintiff appropriately stated a cause of action for breach of contract. While a plaintiff alleging a breach of contract is not required to attach the contract, or to plead terms verbatim, the plaintiff must, at the minimum, plead the “legal effect of the contract rather than its precise language.” (Miles v. Deutsche Bank Nat’l Trust Co. (2015) 236 Cal.App.4th 394, 402 [disapproving law to the contrary]; (Ochs v. PacifiCare of Cal. (2004) 115 Cal.App.4th 782, 795.) Here, Plaintiff alleges that the agreement is attached as Exhibit A. But since the exhibit is unaccompanied by a translation from a qualified interpreter, it cannot be considered and is stricken from the Complaint. (CRC 3.1110, subd. (g).) Therefore, the demurrer to the First Cause of Action is SUSTAINED.

2.

Second

Cause of Action for Fraud

Defendants argue that Plaintiff fails to state a cause of action for fraud because the Complaint does not satisfy the heightened requirements for pleading fraud.

A plaintiff asserting a fraud claim must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73; see also Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.) Here, Plaintiff’s counts for misrepresentation and concealment fail because they do not identify which of the defendants made the representations or concealed material facts; Plaintiff refers to “Defendants” without specifying each individual’s misconduct. Plaintiff’s count for promissory

estoppel is also deficient because Plaintiff only alleges that Mr. Liu “promised to open a restaurant business with Plaintiff and would purchase the business with \$300,000.” (Compl., p. 5, FR-4.)

Accordingly, the demurrer to the Second Cause of Action is SUSTAINED.

B.
Motion
to Strike

Since the Court sustains the demurrer to the Complaint in its entirety, the motion to strike is moot.

IV. CONCLUSION

Defendants’ demurrer to the entire complaint is SUSTAINED. Since Plaintiff did not oppose the demurrer, the Court declines to grant leave to amend.

Defendants’ motion to strike is moot.

Defendants to give notice.

Dated
this 20th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others

might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.